organization duly authorized by it, the aggregated value for each datum specified in appendix IX to this Annex, via electronic communication and using a standardized format to be developed by the Organization.

4 In the event of the transfer of a ship from one Administration to another, the ship shall on the day of completion of the transfer or as close as practical thereto report to the losing Administration or any organization duly authorized by it 41, the aggregated data for the period of the calendar year corresponding to that Administration, as specified in appendix IX to this Annex and, upon prior request of that Administration, the disaggregated data.

5 In the event of a change from one company to another, the ship shall on the day of completion of the change or as close as practical thereto report to its Administration or any organization duly authorized by it, the aggregated data for the portion of the calendar year corresponding to the company, as specified in appendix IX to this Annex and, upon request of

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organization duly authorized by it, the aggregated data for the portion of the calendar year corresponding to the company, as specified in appendix IX to this Annex and, upon request of its Administration, the disaggregated data.

6 In the event of change from one Administration to another and from one company to another concurrently, paragraph 4 of this regulation shall apply.

7 The data shall be verified according to procedures established by the Administration, taking into account the guidelines developed by the Organization.

8 Except as provided for in paragraphs 4, 5 and 6 of this regulation, the disaggregated data that underlies the reported data noted in appendix IX to this Annex for the previous calendar year shall be readily accessible for a period of not less than 12 months from the end of that calendar year and be made available to the Administration upon request.

9 The Administration shall ensure that the reported data noted in appendix IX to this Annex by its registered ships of 5,000 gross tonnage and above are transferred to the IMO Ship Fuel Oil Consumption Database via electronic communication and using a standardized

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Annex by its registered ships of 5,000 gross tonnage and above are transferred to the IMO Ship Fuel Oil Consumption Database via electronic communication and using a standardized format to be developed by the Organization not later than one month after issuing the Statements of Compliance of these ships.

10 On the basis of the reported data submitted to the IMO Ship Fuel Oil Consumption Database, the Secretary -General of the Organization shall produce an annual report to the Marine Environment Protection Committee summarizing the data collected, the status of missing data, and such other relevant information as may be requested by the Committee.

11 The Secretary-General of the Organization shall grant the Administration of a ship to which regulation 28 of this Annex applies access to all the reported data for all the pre ceding calendar year in the IMO Ship Fuel Oil Consumption Database for that ship.

12 The Secretary-General of the Organization shall maintain an anonymized database such that identification of a specific ship will not be possible. Parties shall have acces s to the anonymized data strictly for their analysis and consideration.

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such that identification of a specific ship will not be possible. Parties shall have acces s to the anonymized data strictly for their analysis and consideration.

13 The IMO Ship Fuel Oil Consumption Database shall be undertaken and managed by the Secretary -General of the Organization, pursuant to guidelines to be developed by the Organization.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 44 -

Regulation 28
Operational carbon intensity

Attained annual operational carbon intensity indicator (attained annual operational CII)

1 After the end of calendar year 2023 and after the end of each following calendar year, each ship of 5,000 gross tonnage and above which falls into one or more of the categories in regulations 2.2.5, 2.2.7, 2.2.9, 2.2.11, 2.2.14 to 2.2.16, 2.2.22, and 2.2.26 to 2.2.29 of this Annex shall calculate the attained annual operational CII over a 12 -month period from 1 January to 31 December for the preceding calendar year, using the data c ollected in

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Annex shall calculate the attained annual operational CII over a 12 -month period from 1 January to 31 December for the preceding calendar year, using the data c ollected in accordance with regulation 27 of this Annex, taking into account the guidelines to be developed by the Organization.

2 Within three months after the end of each calendar year, the ship shall report to its Administration, or any organization du ly authorized by it, the attained annual operational CII via electronic communication and using a standardized format to be developed by the Organization.

3 Notwithstanding 1 and 2 of this regulation, in the event of any transfer of a ship addressed in regulations 27.4, 27.5 or 27.6 completed after 1 January 2023, a ship shall, after the end of the calendar year in which the transfer takes place, calculate and report the attained annual operational CII for the full 12 -month period from 1 Jan uary to 31 December in the calendar year during which the transfer took place, in accordance with regulations 28.1 and 28.2, for verification in accordance with regulation 6.6 of this Annex, taking into account

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calendar year during which the transfer took place, in accordance with regulations 28.1

and 28.2, for verification in accordance with regulation 6.6 of this Annex, taking into account guidelines to be developed by the Organization. Nothing in this regulation relieves any ship of its reporting obligations under regulation 27 or this regulation of this Annex.

Required annual operational carbon intensity indicator (required annual operational CII)

4 For each ship of 5,000 gross tonnage and above which falls into one or more of the categories in regulations 2.2.5, 2.2.7, 2.2.9, 2.2.11, 2.2.14 to 2.2.16, 2.2.22, and 2.2.26 to 2.2.29 of this Annex, the required annual operational CII shall be determined as follows:

Required annual operational CII = (1 Z100) CIIR
where,

Z is the annual reduction factor to ensure continuous improvement of the ship 's operational carbon intensity within a specific rating level; and

CIIR is the reference value.

5 The annual reduction factor Z and the reference value CIIR shall be the values defined taking into account the guidelines to be developed by the Organization.
Operational carbon intensity rating

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CIIR is the reference value.

5 The annual reduction factor Z and the reference value CIIR shall be the values defined taking into account the guidelines to be developed by the Organization.
Operational carbon intensity rating

6 The attained annual operational CII shall be documented and verified against the required annual operational CII to determine operational carbon intensity rating A, B, C, D or E, indicating a major superior, minor superior, moderate, minor inferior, or inferior performance level, either by the Administration or by any organization duly authorized by it, taking into account the guidelines developed by the Organization. The middle point of rating level C shall be the value equivalent to the required annual operational CII set ou t in paragraph 4 of this regulation.

Corrective actions and incentives
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 45 -

7 A ship rated as D for three consecutive years or rated as E shall develop a plan of

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INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 45 -

7 A ship rated as D for three consecutive years or rated as E shall develop a plan of

corrective actions to achieve the required annual operational CII.

8 The SEEMP shall be reviewed to include the plan of corrective actions accordingly , taking into account the guidelines to be developed by the Organization . The revised SEEMP shall be submitted to the Administration or any organization duly authorized by it for verification, preferably together with, but in no case later than 1 month after reporting the attained annual operational CII in accordance with paragraph 2 of this regulation.

9 A ship rated as D for three consecutive years or rated as E shall duly undertake the planned corrective actions in accordance with the revised SEEMP.

10 Administrations, port authorities and other stakeholders as appropriate, are encouraged to provide incentives to ships rated as A or B.

Review

11 A review shall be completed by 1 January 2026 by the Organization to assess:

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10 Administrations, port authorities and other stakeholders as appropriate, are encouraged to provide incentives to ships rated as A or B.